

END-USER LICENSE AGREEMENT

AXAR DIGITAL SERVICES PRIVATE LIMITED a Company registered under the Indian Companies Act, 1956 having its Registered Office at 9, 2nd Floor, L-Square, Sanghvi Nagar, Aundh, Pune MH-411 007, (hereinafter called as the "Owner"/ "Licensor" or first party which expression shall unless it be repugnant to the context or meaning thereof shall be deemed to mean and include its successors & assigns)

This Agreement is a legal contract made between second party and Licensor. *(hereinafter second party called as the "Licensee" which expression shall unless it be repugnant to the context or meaning thereof shall be deemed to mean and include its successors & permitted assigns).*

This Agreement is made effective if you agree to be bound by the terms of this agreement and select the box labeled **"I ACCEPT,"** at that time the software will be installed on your computer and License Period shall begin as described in clause 1.1 of this Agreement. The software you seek to install from **licensor** is licensed only on the condition that to you agree the terms and conditions with which you must comply in order to access and use the Software.

PLEASE READ THE TERMS OF THIS SOFTWARE LICENSE AGREEMENT CAREFULLY.

Definitions: -

1. **"Agreement"** means this License Agreement along with its exhibits, annexures or documents that are referred in the Agreement and attached hereto and shall include any modifications made thereto in accordance with the provisions hereof.
2. **"Authorized Representatives"** shall mean Licensor's/ Licensee's Directors, employees, officers, etc. as authorized by the respective Party for the purposes of this Agreement.
3. **"Confidential information"** means non-public information whose possession by unauthorized third parties would be detrimental to the Parties' interests, in any form. Such Confidential information includes, without being limited to, the following:
 - A) Information comprised in or relating to any Intellectual Property Rights of the Parties,
 - B) Information that has commercial relevance only to the Parties to this Agreement,
 - C) Information that is designated in writing by the Parties as confidential,
4. **"Derivative Work"** shall mean any work which is a modification of the Software Product or creation of a new program which uses, directly or indirectly, any Intellectual Property including ideas, concepts, know-how or techniques disclosed in the Software, and includes all written material including code, listings and other programming documentation relating to the Software. A Derivative Work does not include work which merely interfaces with the Software Product.
5. **"Designated site of installation"** shall mean location where the Software is or shall be installed. In case the location of Software license is on cloud or other such virtual sites, then the Licensee may designate a location within the Licensed Territory as the Designated site of installation.
6. **"Intellectual Property"** shall mean all forms of intellectual property subsisting under the laws of India and all analogous rights subsisting under the laws of other jurisdictions and shall include any legally protect-able product or process of the human intellect.
7. **"Intellectual Property Rights"** means all registered and unregistered rights in and to any Intellectual Property and all other rights resulting from intellectual activity in the industrial, scientific, literary or artistic field and any application or right to apply for registration of any of these rights and any right to protect or enforce any of these rights specified in Clause 12 of this Agreement.
8. **"Licensed Territory"** shall mean geographical area of India.
9. **"On-site support"** shall mean the technical support to be provided by Licensor to Licensee at Licensee's Designated site of installation as per Exhibit 1 hereto.
10. **"Purpose"** shall mean the purpose for which the Licensee shall use the Software Product which is for managing and recording activities given under Prohibition of Insider trading Regulations.
11. **"Software Product" and "Software"** shall mean product developed by the Licensor. It is merchandise consisting of a computer program that is offered for use under this license and is called InsiderLens.

To further clarify, 'Software Product' and 'Software' shall mean computer programmes and all documentation relating thereto, and includes the ideas and concepts contained within the various physical implementations of the Software, any hardware key that may be furnished, machine-readable instructions and data, components, audio-visual content (such as images, text, recordings, or pictures, and/or development process documentation including, but not limited to documentation on computer readable media), and any computer programs delivered to Licensee in machine-readable, object code or other relevant form as maintenance releases, updates, upgrades and product releases and any related documentation associated therewith, including all interfaces and custom programming developed by Licensor for Licensee.

WHEREAS:

1. The Licensor owns the Intellectual Property Rights in or used in connection with the Software Product including all documentation and manuals and all copies made thereof.
2. The Licensor is agreeable to permit Licensee to use the Software Product on payment of agreed-upon fees (the "License Fee"), subject to the Licensee accepting and agreeing to be bound by the terms and conditions contained herein without any reservations or modifications ("License").
3. It is unlawful for the Licensee to install the Software Product on computer/s or any other electronic devices or use it in any manner without first acquiring the License from the Licensor.

NOW THEREFORE, IN CONSIDERATION OF THE FOREGOING AND THE MUTUAL COVENANTS AND PROMISES CONTAINED HEREIN AND OTHER GOOD AND VALUABLE CONSIDERATION, THE RECEIPT AND ADEQUACY OF WHICH IS HEREBY ACKNOWLEDGED, LICENSOR AND LICENSEE INTENDING TO BE BOUND LEGALLY, AGREE AS FOLLOWS:

1. Grant

1.1 Subject to the terms and conditions of this Agreement, Licensor grants Licensee a non-exclusive, non-transferable License to use the Software Product in the Licensed Territory during the License Period for Purpose. The License Period shall be a period of 12 months (unless terminated or renewed as per terms hereof) which shall begin from: -

1. Receiving the acceptance certificate; or
2. 10 days from the date of installation of Software Product on Licensee's Designated site of installation; whichever is earlier.

1.2 Licensee shall be entitled to have the Software copied only as reasonably required for archival purposes. The documentation [user manuals and FAQs] may be copied as reasonably required to support the use of the Software only during the License Period. In all instances, Licensee shall be required to reproduce in entirety without modification all copyright, patent, proprietary rights and confidentiality notices and restricted rights legends appearing on the Software or the documentation (whether or not the entire Software or documentation is being copied).

1.3 Software Product's server component shall be installed at Designated site of installation as may be provided by the Licensee. The access component of the Software can be installed on multiple devices which can be accessed and used from any location. In the event that an inoperable server computer condition exists at Designated site of installation, rendering the Software inoperable there at, Licensee may install and operate, on a temporary basis, the Software on a server computer located at a back-up site (within the Licensed Territory) not previously designated as Designated Site of installation, subject to Licensee providing Licensor with prompt written notice of the location of such back-up site, and subject to the further condition that, if and when the inoperable Designated Site of installation becomes operational again, Licensee shall promptly reinstall and begin to operate the Software at the Designated Site of installation and uninstall the Software and cease its operation at the back-up site. It is however clarified that at all times the Software would be so installed that an operating/productive form operates only at one Designated Site of installation, at a time.

1.4 Licensee shall be permitted to allow its employees, directors and Authorized Representatives to use the Software Products (a) solely for the Purpose; (b) only in accordance with the terms of this Agreement; and (c) with technical support from Licensor (if so required) to such persons to be coordinated through Licensee. Provided however that notwithstanding the use of the Software Products by such persons, Licensee alone shall be responsible for ensuring compliance with the terms of this Agreement and breach of any term by such persons shall be considered as a breach by Licensee itself.

1.5 Licensee shall inform all users of the Software of the terms and conditions of this Agreement. Title to and full ownership of the Software and all copies and documentation thereof shall remain with Licensor and are protected by all applicable Intellectual Property laws of India, and all other applicable laws. All rights not explicitly granted to Licensee herein are reserved with Licensor.

1.6 This Agreement does not grant Licensee rights to any improvements, modifications, enhancements, upgrades, updates to the Software, or to technical support services. Use of improvements, modifications, enhancements, upgrades or updates to the Software shall be governed by the terms and conditions of this Agreement unless specified otherwise.

1.7 Restrictions on use: The Licensee agrees and acknowledges that it shall at all times comply with the following:
i. Licensee shall not use, copy, translate, print or display the Software, in whole or in part, other than as expressly authorized in this Agreement.

ii. Licensee shall not rent, lease or use the Software to provide service bureau, time sharing, application service provider or other outsourcing services, hosted or other computer services to third parties including its affiliates. Licensee agrees that the Software shall be used for the Purpose only in accordance with this Agreement on computers owned or leased by it and will process data only for itself. Licensee will not assign, sell, lease, market, transfer, reproduce, or disclose the Software or any modification thereto to others, except as expressly authorized herein. Licensee will not directly or indirectly permit any other person or entity to have access or use of the Software Products other than the person(s) allowed under this Agreement.

iii. To the extent that the Software comprises of various software bundled together or the Software is bundled with any other software programs at the time of delivery, the same may not be unbundled from, or used independently of the Software. If any such software that is bundled with the Software which is governed by separate licensing terms, the same shall be included as a part of the documentation and Licensee shall ensure that the use of such software shall only be in accordance with such terms.

iv. Licensee is expressly prohibited from making or permitting another person or entity on Licensee's behalf to make, any Derivative Work to a program, or any portion thereof. The Intellectual Property Rights to any such Derivative Work shall accrue to Licensor.

v. Licensee shall not reproduce, deactivate or bypass the security devices, including any hardware key that may be supplied with the Software. Licensee shall comply with all licensing procedures, and shall not utilize programs, scripts or any other automatic devices to access or use the Software in a manner inconsistent with the terms of this Agreement or otherwise in violation of applicable laws.

vi. Licensee shall not reverse compile or reverse engineer (whether by utilizing Computer Aided Software Engineering tools or otherwise) the Software, or otherwise attempt to derive source code from the Software for any purpose or otherwise device any way to by-pass the product key in any manner.

vii. The Licensee shall be bound by the confidentiality obligations and shall not share, propagate or use for its gain any information, data, statistics or business information, ideas, concepts that are shared with it by the Licensor during the installation or usage of the Software Product.

viii. Licensee agrees that the Software Products and Intellectual Property Rights of the Licensor shall be granted the same level of protection as would be granted by a person of prudence and in any event the level of such protection shall be no less than that afforded by the Licensee for its own proprietary software, data, documentation and Intellectual Property Rights or the standards applied by them for any licensed software, data, documentation and Intellectual Property Rights.

1.8. The Licensor shall also not copy, store, archive or save any data, information, resolutions, reports and statistics uploaded, shared or saved by the Licensee on the Software Product. If any such data, information is copied, stored, archived or saved on the Software Product shall be the property of the Licensee and shall be destroyed or returned to Licensee as per its instructions.

1.9 The Licensor also understands that draft resolutions, company reports (financial, technical or commercial) shall be treated as highly sensitive and need to be protected from the public disclosure at the time.

2. Representations

The Parties hereby represent and undertake the following:

2.1 The Parties have the full legal right, power and authorities, including necessary statutory licenses, to enter into, execute and deliver this Agreement and to perform the obligations, undertakings and transactions set forth herein.

2.2 This Agreement has been duly and validly executed and constitutes valid and binding obligations enforceable in accordance with the terms contained therein.

2.3 Either party shall not without the prior written consent of the other party, solicit the employment of, or employ, any person or such party who is known or with the exercise of reasonable diligence should know, that such person is, at the relevant time of inquiry, an employee of, or within the twelve (12) months period preceding such time has been an employee of the other Party.

2.4 The Licensor represents that it has marketable title and rights over the Software Product and they are not in breach of any Intellectual Property Rights of any third party.

2.5 Licensee shall not use the Software Products in conjunction with any other products or systems, not agreed upon by the Parties.

2.6 Licensee shall not use the Software Products for any other objective other than the Purpose.

3. Disclaimers and Warranties

3.1 While all reasonable care has been taken, Licensor does not warrant that the Software will meet the requirements of any particular user or that the Software will be error free. Licensee shall test the Software with non-critical data before utilizing the same. In the event of there being any significant, functional and reproducible error in the Software, upon Licensee's written request, Licensor shall make reasonable efforts to correct the same; provided that Licensor receives written notice promptly after such error comes to the attention of Licensee, and further provided that such error relates to the required functioning of the Software and has not been caused by actions or negligence on the part of Licensee or any third party, hardware or software design errors not attributable to the Licensor, malfunctions or other causes external to the Software. And as such Licensor shall be entitled to charge and Licensee shall pay such charges as are mutually agreed, if it is found by Licensor and agreed by the Licensee upon explanation by the Licensor that the error is not in the Software Product. Licensee cannot claim any rights specified in this clause unless the product is purchased, fees are paid, and this Agreement is signed.

3.2 Licensor does not warrant that the Software shall produce intended results when combined with any other system or shall integrate with the existing system of Licensee. This Agreement shall not create any rights / remedies for third parties (other than Licensee) irrespective whether they have used the Software.

3.3 Licensor does not warrant or guarantee that all Software versions, upgrades, updates or corrections shall be provided with similar grades and level of service, features, functionality and the ability to use, the Software. However, the Licensor warrants that such Software versions, upgrades, updates or corrections shall be of equivalent standards and levels that is subject matter of this Agreement. Licensor does not warrant or guarantee that the functions or services performed by the Software will be uninterrupted or that defects in the Software will be corrected by it. It is the sole responsibility of Licensee to isolate software and information, execute anti-contamination software and otherwise take steps to ensure that software or information, if contaminated or infected, will not damage Licensee's information or system.

3.4 The warranties contained herein are in lieu of all other warranties or conditions, express or implied, including, without limitation, those of merchantability or fitness for a particular purpose, availability, non-infringement, quiet enjoyment and accuracy. In no event shall the Licensor be liable for damages, direct or indirect, including, incidental or consequential damages (including loss of profits), suffered by the Licensee or other third party arising from breach of warranty or breach of contract, negligence or any other legal cause of action regardless of the form of action whether in contract, tort (including negligence), strict product liability or otherwise, even if the Licensor has been advised of the possibility of such damages.

3.5 Licensee's exclusive remedy for the breach by Licensor of this License including representations and warranties contained herein or otherwise the failure of Licensor to correct/rectify the defects, errors or bugs in the Software or arising out of termination of this Agreement under clause 5.1 below, shall be, either (a) the repair or replacement of the Software at earliest possible at the cost of the Licensor; or (b) a refund of the License Fee paid for the Software Product. This limited warranty shall be void if the aforesaid breach has resulted from accident, abuse, misapplication or use of the Software with incompatible hardware or incompatible operating systems on the part of Licensee.

4. Regulatory Compliance

Licensee is solely responsible for monitoring and interpreting all laws, rules and regulations pertaining to Licensee's business and use of the Software.

5. Term and Termination

The term of the License shall be the License Period. The License Period shall be renewed, on the terms and conditions of this Agreement, for 12 months each year upon the Licensee paying the subscription fee in full in advance as per clause 6 below. The License Period shall stand terminated in the event of non-payment of the license fees as per clause 6 below.

This Agreement shall be effective from the date of execution of this Agreement and shall be valid until terminated in accordance with the provisions hereof.

5.1 If either Party to this Agreement breaches any of its obligations under this Agreement or any of the representations are found to be untrue and fails to cure such breach within thirty (30) days following receipt of a notice of default from the other party, the Party not committing the breach shall have a right to terminate this Agreement effective as of a date specified in the notice of default. Provided, however, that if Licensee infringes Intellectual Property in the Software Product or uses the Software Product in a manner not expressly permitted under this Agreement, Licensor shall be entitled to forthwith terminate this Agreement and the License by giving a notice in writing subject to terms contained in this Agreement.

5.2 Either Party may immediately terminate this Agreement in its entirety upon written notice to the other defaulting Party ("Defaulting Party") in the event such Defaulting Party (a) makes a general assignment for the benefit of its creditors; applies for the appointment of a trustee, liquidator or receiver for its Business or property; (b) the Defaulting Party is subject to a proceeding for winding up, receivership, dissolution or liquidation and such proceedings are not dismissed or withdrawn within thirty (30) days from the date of filing; or (c) an order of winding up of liquidation is passed against the Defaulting Party.

5.3 Termination of this Agreement shall not relieve either Party from any obligations accrued upto the date of termination. Further, the provisions which by their nature survive termination of this Agreement including without limitation provisions relating to Intellectual Property Rights, Confidentiality, Indemnity, Limitation of Liability, Governing Law and Jurisdiction, Arbitration.

5.4 Subject to the terms contained in this Agreement, upon termination of this Agreement or expiry/termination of the License Period, Licensee's right and license to use the Software shall be terminated and Licensee shall:

- (A) Immediately cease using the Software Product;
- (B) Erase the same from the storage in each computer system in which it has been installed;
- (C) Maintain in confidence all knowledge of the Software and its use as provided hereunder; and
- (D) At the option of Licensor, either return to Licensor or destroy all physical embodiments of the Software Product/s and software artifacts and certify to Licensor in writing that such destruction has occurred.

6. License Fees and Taxes

6.1 In consideration of the Licensor granting the License to the Licensee for using Licensor's Software Product, the Licensee will pay the subscription fee and Cloud hosting charges as mentioned in the proposal. The Licensee shall be entitled to renew the License every year by payment of the then applicable renewal / subscription fees as intimated by the Licensor, in full in advance, provided the Licensee has not breached any terms hereof. The aforesaid fee is exclusive of all applicable taxes and the Licensee shall pay all applicable duties, withholdings and taxes related to this Agreement.

7. Indemnity

Licensee shall defend, indemnify and hold the Licensor harmless from any and all liabilities, losses, damages, settlements, claims, actions, suits, penalties, fines, costs or expenses (including reasonable attorneys' fees and other expenses of litigation actually incurred) arising out of any claim or action brought against the Licensee by any third party arising out of or resulting from:

- (A) the negligence, recklessness or intentional acts or omissions of the Licensee and the transactions contemplated hereby;
- (B) any breach of a representation, warranty, covenant of this Agreement or manner of use of the Software not expressly permitted under this Agreement; and
- (C) negligence or misconduct in respect of use of the Software Product.

8. Limitation of Liability

Notwithstanding anything contained to the contrary in this Agreement, Licensor's total liability (whether under contract or tort or misrepresentation or any other form) arising pursuant to this Agreement shall be limited to the amount of the License fees received by Licensor under this Agreement. In no event shall Licensor be liable for any incidental, consequential, special or indirect damages (including without limitation, damages arising from lost business, data, profits or goodwill) incurred or suffered by Licensee with respect to this Agreement or the installation, use, operation, defect or failure of the Software or for any other reason, even if Licensor has been apprised of the likelihood of the same. The foregoing states and constitutes the entire obligations and liabilities of the Licensor to the other party.

Licensor or Licensor's employees shall not, at any time, have access to Licensee's data or computer/ machines, without prior approval and request being received from the Licensee.

9. Arbitration

All dispute/s or difference/s or claim/s of whatsoever nature, if any, arising between Licensor and Licensee whether existing or which shall at any time arise between the parties hereto concerning this Agreement, or to the rights and liabilities of the parties or arising out of this Agreement, whether during or after expiry of the Agreement shall be referred for adjudication to the Sole Arbitrator to be appointed by mutual consent under the Arbitration and Conciliation Act, 1996, as may be amended from time to time ("Act"). In the event the parties are unable to concur on the appointment of a sole arbitrator within seven (7) days of the dispute being referred to arbitration, then the arbitrator shall be appointed as per the Act. All the cost and expenses in relation to such arbitration shall be borne equally by both parties and each shall separately pay its respective counsel fees and expenses. The venue of

arbitration shall be Pune, India. The Arbitrator appointed, as mentioned above, shall be a resident of India. All proceedings in any such arbitration shall be conducted in English. In case of dispute(s), the related notices shall be exchanged between the Authorized Representatives of the parties to this Agreement.

10. Governing Law and Jurisdiction

This Agreement shall be governed and construed in accordance with the laws of India. Subject to clause 9 above, the courts of Mumbai shall have the exclusive jurisdiction to entertain and settle any dispute relating to or arising out of this Agreement.

11. Miscellaneous

11.1 Assignment: This grant of 'right to use' is exclusively to Licensee named herein. This Agreement may not be assigned by Licensee to any legal entity(s) or person(s) including but not limited to subsidiary(ies), holding company(ies), parent company(ies), joint venture partner(s), alliance partner(s) for any purpose whatsoever without the prior written consent of Licensor. Except as set forth in this Article, any transfer of this Agreement by liquidation or otherwise by operation of law or pursuant to a change in control of Licensee shall constitute an assignment for the purpose of this Agreement and shall require prior written consent of Licensor. Licensor may at its sole discretion, either with or without any condition, grant or refuse to grant the consent.

11.2 Confidentiality: The parties hereby acknowledge that they are aware of the fact that the Software contains professional and confidential know-how and, therefore, agree not to disclose, transfer, or otherwise provide to any third party all or part of the Software, information, data or reports stored, shared or saved on it without the express written permission of the other Party. Similarly, the Parties are obligated to not to disclose the terms of this Agreement to third party without the written consent of the other Party and also, the Licensor shall not use/mention the brand of Licensee in any of its marketing or profile documents except as may be approved by Licensee in writing.

11.3 Entire Agreement: This Agreement including the exhibit hereto and the purchase orders/work orders issued pursuant to or in relation to this Agreement constitute the entire agreement between the parties with respect to the subject matter hereof and overrides all previous understanding, correspondences, agreements, whether written or oral between the two parties.

11.4 Use of Licensee's Information: Licensee agrees to allow Licensor to store and use Licensee's business contact information only, including names, business phone numbers and business e-mail addresses, anywhere Licensor does business. Such information will be only processed and used for communicating with Licensee and providing support. The Licensor can use Licensee's name, address and logo in Licensor's client list and the list may be available, in full or in part, to the public.

11.5 Signature: The Parties declare and accept that the mark affixed below in the place designated for signature by Licensor and Licensee shall be considered as acceptance of the terms of this License and shall be considered as compliance of any law requiring such an Agreement to be signed.

11.6 Sending of Log: Licensee shall on daily basis during the term of the Agreement send logs to the Licensor while operating and using the Software Product. These logs shall be used by the Licensor solely for monitoring, understanding and resolving bugs and errors, if any, that may occur while using the Software Product. It shall be the responsibility of the Licensee to ensure and verify that such logs do not contain any confidential data of Licensee or any other person. Such verification shall be done prior to providing the log records to the Licensor as aforesaid.

12. Intellectual Property Rights:

All Intellectual Property Rights over and in respect of the Software Product, all customization thereof, documentation thereof, updates, upgrades, derivative works, Licensor's Confidential Information are owned by Licensor. Licensee does not acquire any rights of ownership in the Software Product. Only Licensor has the exclusive right to produce Derivative Work. At the same time, the Intellectual Property Rights in any information, data, statistics or business information, ideas, concepts that are shared, saved or stored by the Licensee with the Licensor

shall remain with Licensee, provided such information is explicitly identified by Licensee. Licensee hereby agrees that it shall not, directly or indirectly, attempt to register any of the trademarks, company names or trade names or any logo used or associated with the Software Products nor shall attempt to develop or in any way develop any products which are similar to any portion of the Software Products.

All Intellectual Property Rights in respect of the Software delivered to Licensee under this Agreement and subsequent support and services including but not limited to product fixes, modifications or enhancements that are either release generally (such as commercial product service packs) or that are provided to Licensee when performing services (such as workarounds, patches, bug fixes, beta fixes and beta builds) shall belong exclusively to Licensor.

13. Amendment

No change or modification of this Agreement shall be valid unless the same shall be in writing and signed by both parties hereto.

14. Relationship

In performing this Agreement, each party shall act as an independent contractor and not as agent for or employee of the other party. Neither party shall have the right or power to bind the other party to any contract or agreement with any third party, nor shall that party have a right to hire anyone on behalf of the other party unless specifically requested or authorized to do so by that party in writing. The relationship created by this Agreement is a contract for services and nothing herein contained is intended to create the relationship of a partnership, joint venture or employer-employee between the parties hereto.

15. Severability

If any provision of this Agreement is invalid, unenforceable or prohibited by law, this Agreement shall be considered divisible as to such provision and such provision shall be imperative and shall not be part of the consideration moving from either party hereto to the other, and the remainder of this Agreement shall be valid, binding and of like effect as though such provision was not included herein.

16. Waiver

No failure or delay on the part of any of the parties to this Agreement relating to the exercise of any right, power, privilege or remedy provided under this Agreement shall operate as a waiver of such right, power, privilege or remedy or as a waiver of any preceding or succeeding breach by the other party to this Agreement nor shall any single or partial exercise of any right, power, privilege or remedy preclude any other or further exercise of such or any other right, power, privilege or remedy provided in this Agreement all of which are several and cumulative and are not exclusive of each other or of any other rights or remedies otherwise available to a party at law or in equity.

17. Acknowledgement and Exclusivity.

Licensee ACKNOWLEDGE that they have read this agreement, understand it, and agree to be bound by its terms and conditions. Licensee further agree that it is the complete and exclusive statement of the agreement between them and vendor, and that it supersedes any proposal, prior agreement, or understanding, oral or written, and any other communication between licensee and vendor relating to the subject matter of this agreement. this agreement may not be changed, altered, or modified except in writing and signed by the parties.

EXHIBIT 1

This EXHIBIT 1 is annexed to and is made an integral part of the Agreement, between **End-User** and **Axar Digital Services Private Limited** from the date of acceptance of this Agreement.

Deliverables:

1. Installation of InsiderLens version 1.0
Server software for installation at the Designated site of installation, along with relevant documentation in electronic media, including Soft copy of User Manual for InsiderLens
2. Administrator Training on telephone, not exceeding two hours.

Technical support for Product:

Licensor will provide technical support to support requests in a transparent manner. Technical support cases will be prioritized according to the priority assigned by Licensee. Response and resolution time of cases will depend on the priority of Licensee as well as complexity of the issue. Licensor will provide a designated point-of-contact to address the technical issues of Licensee. Licensee's designated point-of-contact can communicate directly with Licensor's designated point-of-contact via phone or email.

All the on-site support activity will be charged at actuals. Licensor will provide off-site (remote) technical support in the License Period, not exceeding one man-day. For on-site support activity, Licensee will make the necessary conveyance, traveling, food and stay arrangements for Licensor's staff.

Following terms are applicable for technical support: -

1. Licensor will provide off-site technical support on working days (Monday to Friday) between 10.00 a.m. to 6.00 p.m. (both online and telephonic support)
2. Technical Support will include the following
 - Technical and process guidance for effective use of the software product
 - Correction of any software defects if found during usage of the product
3. Exclusions
 - Software change requests by Licensee.
 - Administration and maintenance of customer's I.T. Infrastructure on which software product is hosted
 - Installation, upgrade or troubleshooting of 3rd party software or tools

Terms for Onsite services:

Licensee will make appropriate travel, food and stay arrangements for Licensor's Staff for all the on-site work. The travel arrangements should be made based on the commute time. Food and stay arrangements should meet industry standards of quality and hygiene. Licensee should plan and discuss the details of these arrangements with Licensor's point-of-contact before finalizing them upon mutual agreement between the both. If the on-site destination is outside Maharashtra, Licensee should arrange for travel by air.

During License Period the technical support will cover, apart from Bug Fixes that may occur, the following subsequent to start of License Period:-

1. Email /Telephonically answer any technical queries within the purview of product operation and product usage. This support will be provided during normal business working hours, from Monday to Friday, between 10 am to 6 PM.
2. Licensor will not be responsible for resolving situations caused by actions of negligence by Licensee personnel like file corruption, lack of anti-virus protection, wrong rule usage, mismanagement of user rights, etc.
3. Interface with Licensor technical team for resolving bugs if any.
4. All the updates in the software, including bug fixes, Graphical User Interface changes and speed enhancements will be provided.
5. Any specific requirement by the Licensee, which is specifically used for Licensee's business or Company, will be chargeable and will be treated as customization subject to feasibility as well as approval from Axar Digital.

6. Support will be provided to ensure that the software functions as per the product definition and that material errors if any are fixed within a reasonable time. Such Support does not include correction of errors caused by unauthorized modification done to the Software or the Infrastructure, Network, System software set up. Licensor is not obligated to undertake corrections required due to any such updates or infringements.
7. Licensor may ask Licensee to provide error logs and other files from the server to enable remote resolution of problem. In case Licensor is not provided access to Licensee's Server installation, Licensor would require these files to be separately sent or emailed by Licensee.
8. Licensor will use reasonable efforts to respond to Licensee's requests and resolve problems within a time frame that reasonably reflects the urgency of the request. Our aim is to answer all reasonable requests for technical support within 24 hours if submitted by email or telephone. Licensor will use reasonable efforts to give the most appropriate advice, but the responsibility for acting on or implementing such advice shall remain with Licensee.